Defendant: Shane Jonathan Lozenich
Court: King County Superior Court – Criminal Division
Case No.: 21-1-04347-2 SEA (and related cause 22-1-04242-3 SEA)
Date: September 22, 2025

I. Summary of Charged Offenses and Applicable Statutes

Count	Statutory Basis	Alleged Conduct (as alleged in the Information)	Potential Penalty*
1	Felony Cyberstalking – Domestic Violence – RCW 9.61.260(1), (3) (domestic-violence enhancement)	Between 3/10/21 and 7/21/21 the defendant sent electronic communications to Brian P. Steves that threatened death or bodily injury.	Class A felony (up to 99 months) plus possible domestic-violence enhancement under RCW 10.99.020.
2	Felony Harassment – RCW 9A.46.020(1), (2)(b)	Between 7/16/21 and 7/20/21 the defendant threatened to kill Ryan Ellis, a Seattle Police Detective performing official duties.	Class A felony (up to 99 months); may be an "exceptionally serious" offense (see RCW 9.94A.505).
3	Threats to Bomb or Injure Property – RCW 9.61.160	Between 5/27/21 and 7/21/21 the defendant threatened to bomb Harborview Medical Center, the University of Washington, and other public facilities; the threats were false and intended to alarm.	Class A felony (up to 99 months).
4	Domestic-Violence Misdemeanor – Violation of a Court Order – RCW 26.50.110(1)	Between 3/10/21 and 7/21/21 the defendant knowingly violated a protection order issued for the protection of Brian Steves.	Gross misdemeanor (up to 364 days) plus mandatory domestic-violence considerations.
5	Threats Against the Governor – RCW 9.94.030 (as charged in cause 22-1-04242-3 SEA, August 9 2022)	Threatening language directed at the Governor of Washington.	Class A felony.

*Penalties are subject to aggravating factors (e.g., domestic-violence designation, prior convictions) and the Washington Sentencing Guidelines (RCW 9.94A.030, 9.94A.505).

II. Evaluation of the Competency Findings

A. Court-Ordered Competency Evaluation (July 2022)

- Finding: The Office of Forensic Mental Health Services concluded that the defendant suffers from an Unspecified Schizophrenia Spectrum and Other Psychotic Disorder and a Stimulant Use Disorder.
- Result: The defendant lacked the capacity to (1) understand the nature of the proceedings against him and (2) assist counsel in his defense. The report recommended restoration treatment and a Designated Crisis Responder (DCR) evaluation.

B. Controlling Washington Competency Authority

Case	Holding	Relevance
State v. Tate, 458 P.2d 904 (Wash. Ct. App. 1969)	Competency is measured by the Dusky standard: present ability to consult with counsel rationally and a rational factual understanding of the proceedings. Retrospective determinations are permissible when based on observations close to trial.	Confirms the trial court may order a new competency hearing after restoration efforts.
State v. Coley, 180 Wash. 2d 543, 326 P.3d 702 (2014)	The burden of proof that a defendant is competent rests on the state (or on the party challenging competency). The court also affirmed the right to self-representation once competency is shown.	Guides motion practice: the prosecution must prove competence; the defense may move to suppress evidence if incompetence is not cured.
State v. Matthews, 135 P.3d 495 (2006)	The insanity defense is a factual issue; the jury may consider expert and lay testimony, and the burden is on the defendant to prove insanity by a preponderance of the evidence.	Important if the defense elects an insanity plea after competency is restored.
State v. Box, 745 P.2d 23 (1987)	Re-states that the defendant bears the burden of proving insanity (or “not guilty by reason of mental disease or defect”) by a preponderance of the evidence.	Reinforces the evidentiary standard for an insanity defense.

State v. Pawlyk, 800 P.2d 338 (1990)	Even when the defense retains a psychiatrist for an insanity claim, the prosecution may obtain the psychiatrist's reports if the defense intends to rely on the expert at trial.	Advises on discovery obligations if an insanity defense is contemplated.
State v. Anaya, 976 P.2d 1251 (1999)	A violation of a protection order does not create a separate criminal offense after the underlying case is dismissed; the Legislature must expressly criminalize such conduct.	May limit exposure on the domestic-violence misdemeanor if the underlying protection order was later dismissed.
State v. Young, 523 P.2d 934 (1974)	Under RCW 9.61.160, a hoax defense is unavailable; the statute expressly eliminates "that the threatened bombing or injury was a hoax" as a defense.	Undermines any "it was a joke" argument for Count 3.
State v. Johnston, 127 P.3d 707 (2006)	Defines a "true threat" under the bomb-threat statute; the jury must be instructed on the objective standard (reasonable person test).	Guides jury instruction and defense strategy on Count 3.
State v. CG, 80 P.3d 594 (2003) (Supreme Court)	For felony harassment, the prosecution must prove the victim was in reasonable fear that the threat would be carried out; the specific content of the threat (e.g., "kill") is not per se sufficient.	Directly relevant to Count 2.
State v. C.G. (Wash. Ct. App. 2002)	The defendant may be sentenced with an exceptional sentence if the crime is a "domestic-violence-related offense" and the victim is a family or household member.	Affects sentencing range for Count 1.
State v. Berrier, 178 P.3d 1064 (2008)	Aggravating factors for an "exceptionally serious" offense need not be pleaded in the information if the defendant receives adequate notice.	Impacts how the prosecution may seek an "exceptionally serious" designation.
State v. Smith, 966 P.2d 411 (1998)	The bomb-threat statute is not overbroad; it does not criminalize protected speech. This supports prosecution's validity of Count 3.	Confirms the statute's constitutionality.

III. Potential Defenses

Defense	Legal Basis (Statutes / Cases)	Practical Application to Lozenich
A. Insanity (or “Not Guilty by Reason of Mental Disease or Defect”)	RCW 9.94.030 (definition of “insanity”); State v. Matthews, State v. Box, State v. Pawlyk. Burden: pre-ponderance.	The competency report already finds a serious psychotic disorder. If restored to competency, the defense can argue that at the *time* of the alleged conduct the defendant lacked the capacity to appreciate the wrongfulness of his acts (M'Naghten standard). A *full-blown* insanity plea may be viable if expert testimony can link the disorder to the specific intent elements (e.g., intent to threaten).
B. Lack of Mens Rea (Specific Intent / Knowledge)	RCW 9.61.260 (requires intent to harass, intimidate, or torment); RCW 9A.46.020 (requires knowledge of threat). State v. CG (reasonable-fear element).	The defendant’s “delusional” belief system may undermine a finding that he *knew* his statements were threatening. If the threat was a product of psychosis, a defense of lack of specific intent may be raised, particularly on the harassment and cyberstalking counts.
C. Mental-Health Diversion / Treatment Program	RCW 10.77.010 (competency); RCW 10.77.060 (restoration); RCW 9.94A.030 (diversion eligibility). State v. Tate (competency restoration).	Because the defendant is currently incompetent, the defense can move for in-camera competency restoration and subsequently seek diversion to a mental-health treatment program (e.g., WSH Court, ADTC) in lieu of prosecution, especially for the misdemeanor violation and possibly the felony counts if the court finds “mental-health-related conduct” under RCW 9.94A.050.
D. Motion to Dismiss / Lack of Sufficient Evidence	State v. CG (reasonable-fear requirement); State v. Johnston (true-threat requirement); State v. Young (hoax not a defense).	For Count 3, the prosecution must prove an *intent* to cause alarm *knowing* the information to be false. If the defendant’s statements were “joking” or lacked the requisite intent, a motion to dismiss may be appropriate. Similarly, on Count 2, if the victim (Detective Ellis) was not placed in *reasonable* fear, the charge could fail.
E. Suppression of Evidence (Fourth-Amendment / Attorney-Client Privilege)	RCW 9.94.030 (insanity privilege); State v. Pawlyk (discovery of defense psychiatrist).	If any of the defendant’s communications with a mental-health provider were obtained without proper warrant or were subject to privilege, a suppression motion may be viable. However, most of the threatening communications were

		sent via email/voicemail and are likely admissible.
F. Plea-Bargaining / Sentencing Mitigation	RCW 9.94A.030 (mitigating factors), RCW 9.94A.505 (exceptionally serious offenses). State v. Berrier, State v. C.G. (aggravating factor notice).	Given the mental-health findings, the defense can negotiate a plea to a lesser felony (e.g., reduction of harassment to a misdemeanor) with mental-health treatment as a condition. Mitigation can emphasize the defendant's lack of prior record, mental illness, cooperation, and absence of actual violence.

IV. Relevant Case Law – Summaries of Holdings

Citation	Holding (Key Point)	Application
State v. CG, 80 P.3d 594 (2003) (Supreme Court)	Felony harassment requires proof that the victim was in *reasonable fear* the threat would be carried out.	Counters the prosecution's argument that a mere threat to kill suffices; the defense can argue the victim's fear was not reasonable.
State v. C.G., 114 Wash. App. 101 (2002) (Court of Appeals)	Clarifies "reasonable fear" analysis and the requirement that the victim actually perceived the threat.	Supports a motion to dismiss for Counts 1 & 2.
State v. Berrier, 178 P.3d 1064 (2008)	Aggravating factors for an "exceptionally serious" crime need not be pleaded if the defendant receives adequate notice.	Allows the defense to argue that the prosecution cannot impose a "dangerous-offender" sentence without proper notice.
State v. Matthews, 135 P.3d 495 (2006)	Insanity is a factual issue; burden on defendant is preponderance. Jury may consider lay testimony.	Guides preparation of expert testimony for an insanity plea.
State v. Box, 745 P.2d 23 (1987)	Defendant must prove "not guilty by reason of mental disease or defect" by a preponderance.	Reinforces the evidentiary standard for insanity.

State v. Pawlyk, 800 P.2d 338 (1990)	Defense-retained psychiatric reports are discoverable when the defense intends to rely on them at trial.	Counsel must disclose any psychiatrist reports used for an insanity defense.
State v. Tate, 458 P.2d 904 (1969)	Competency measured by Dusky standard; retrospective determinations permissible.	Justifies filing a motion for competency restoration now that the defendant is under treatment.
State v. Coley, 180 Wash. 2d 543 (2014)	Burden of proof of competency lies with the state; defendant may represent himself once competency is shown.	Defense can move to have the state prove competency if they seek to proceed.
State v. Anaya, 976 P.2d 1251 (1999)	Violation of a protection order is not a separate criminal offense unless expressly legislated.	May limit exposure for Count 4 if the underlying protection order was later vacated/dismissed.
State v. Young, 523 P.2d 934 (1974)	“Hoax” is not a defense to a bomb-threat charge; knowledge that the threat is false does not excuse liability.	Undermines any “it was a joke” argument for Count 3.
State v. Johnston, 127 P.3d 707 (2006)	“True threat” defined by objective reasonable-person standard; jury instruction required.	Defense must focus on whether a reasonable person perceived the statements as a true threat.
State v. Smith, 966 P.2d 411 (1998)	RCW 9.61.160 is not overbroad; it does not criminalize protected speech.	Supports the prosecution’s position that the statute is constitutionally valid.
State v. Hendrickson, 2013 Wash. Ct. App. (no citation)	Discusses interaction of multiple threat statutes (intimidating a public servant, bomb threat).	Useful for framing arguments that the defendant’s conduct fits multiple statutes; may affect charging strategy.
State v. Haq, 166 Wash. App. 221 (2012)	Defendant bears the burden of proving insanity; mental-disease-defect defense is subject to the pre-ponderance standard.	Reinforces the burden of proof for an insanity defense.

V. Recommended Legal Options & Strategic Steps

1. **File a Motion for Continued Competency Restoration**
   - Cite RCW 10.77.060 (court-ordered competency evaluation) and State v. Tate (allowing restoration).
   - Request placement in a designated crisis-responder (DCR) program or Washington State Hospital (WSH) for intensive treatment, with periodic competency reviews.
2. **Seek a Diversion / Mental-Health Treatment Order**
   - Under RCW 9.94A.050 (mental-health-related conduct) and RCW 9.94A.045 (diversion eligibility), request that the case be referred to a mental-health court (e.g., Seattle-Area Domestic-Violence/Criminal-Justice Mental-Health Court).
   - Emphasize the defendant's lack of prior violent history, current diagnosis, and commitment to treatment.
3. **Prepare an Insanity Defense (if competency is restored)**
   - Retain a forensic psychiatrist to evaluate the defendant at the time of each alleged offense.
   - Draft a motion to introduce expert testimony and disclose the psychiatrist's report per State v. Pawlyk.
   - Anticipate the state's burden (preponderance) and prepare lay-witness testimony on the defendant's behavior and mental state.
4. **Motion to Dismiss / Reduce Charges on Mens-Rea Grounds**
   - For Count 2 (Harassment), file a motion to dismiss arguing the victim was not in *reasonable fear* (cite State v. CG).
   - For Count 3 (Bomb Threat), argue that the prosecution cannot prove *intent* to cause alarm (knowledge that the threat was false is not a defense but *intent* is required). Use State v. Young to show the statutory language.
5. **Suppression / Privilege Motions (if applicable)**
   - Review the chain of custody for the defendant's emails, voicemails, and social-media posts. If any were obtained without a warrant or outside the scope of the protection-order service, consider a motion to suppress under RCW 9.73.030 (search warrants).
6. **Plea-Bargaining Strategy**
   - Negotiate a plea to a misdemeanor harassment or reduction of the bomb-threat count to a class B felony with a mental-health treatment condition.
   - Request sentence-mitigation factors: (a) mental illness, (b) lack of prior record, (c) no actual injuries, (d) willingness to enter treatment.
7. **Pre-Trial Motions**
   - Motion for a Continuance until competency is restored.
   - Motion for a Bill of Particulars (RCW 9.99) to require the prosecution to specify the exact statements alleged to constitute threats, facilitating a precise defense.
   - Motion to Exclude "Junk" Evidence (e.g., unrelated political rants) under Rule 403 (unfair prejudice).
8. **Post-Conviction / Appeal Planning**
   - Preserve all arguments concerning competency, insanity, and mens rea for a potential direct appeal.
   - If convicted, consider a post-conviction petition for restoration of competency or post-conviction mental-health relief under RCW 9.94.030 and RCW 10.77.060.

VI. Procedural Motions to Consider at This Stage

Motion	Purpose	Authority
Motion for Continuance / Stay of Proceedings	Allow time for competency restoration and mental-health treatment.	RCW 10.77.060; State v. Tate.
Motion to Dismiss (Insufficiency of Evidence)	Challenge the sufficiency of the prosecution's proof of *reasonable fear* (harassment & cyberstalking) and *intent* (bomb threat).	State v. CG, State v. Young.
Motion for Bill of Particulars	Force prosecution to detail each alleged threatening communication.	RCW 9.99.
Motion to Suppress Evidence (Fourth Amendment)	If any electronic evidence was seized without appropriate warrant.	RCW 9.73.030; relevant case law on search-and-seizure.
Motion to Compel Discovery of Psychiatric Records / Expert Reports	Ensure the defense's mental-health experts are disclosed.	State v. Pawlyk.
Motion for Diversion/Conditional Release	Seek placement in a mental-health treatment program in lieu of incarceration.	RCW 9.94A.050, 9.94A.045.
Motion for Reduced Bail / Release Conditions	Argue that bail set at $25,000 is excessive given mental-health status.	RCW 10.21 (Bail Determinations).
Pre-Plea Negotiation Letter	Formal request for a plea that incorporates mental-health treatment.	No statutory authority; strategic practice.

Bottom Line

The competency evaluation establishes that Shane Jonathan Lozenich currently lacks the capacity to stand trial. Washington law (RCW 10.77.060; *State v. Tate*) requires restoration treatment before trial can proceed. Simultaneously, the same mental-health findings open the door to insanity or mental-health-related defenses, diversion, and mitigation.

A two-track strategy is advisable:

1. Immediate focus on competency restoration (motion for continued treatment, DCR evaluation).
2. Parallel preparation of an insanity defense (retain forensic psychiatrist, secure expert reports) and pre-trial motions to dismiss or reduce charges on *mens rea* and *reasonable-fear* grounds.

If competency is restored, the defense can leverage the defendant's psychotic disorder and substance-use issues to negotiate a plea with mental-health treatment or to pursue a full insanity defense at trial. All motions should be supported by the statutes and case law cited above.

Similar Cases and Comparison

State v. C.G.Check Treatment
Relevance: 89.7% · 114 Wash. App. 101, 55 P.3d 1204, 2002 Wash. App. LEXIS 2527 · 0 citing cases · Filed on: 2002-10-21, Court of Appeals of Washington

This case is relevant because it discusses the elements of felony harassment under RCW 9A.46.020, specifically addressing the required level of fear experienced by the victim. It clarifies that the victim needs to be in reasonable fear of *bodily injury*, not necessarily that the precise threat made (e.g., to kill) will be carried out. This distinction is important for analyzing whether the threats made by Lozenich meet the statutory requirements for felony harassment, offering insight into potential defenses or interpretations of the statute.

Richard Rynearson, III v. Robert FergusonCheck Treatment
Relevance: 87.9% · 903 F.3d 920 · 2 citing cases · Filed on: 2018-09-07, Court of Appeals for the Ninth Circuit

This case is highly relevant as it directly addresses the applicability of Younger abstention in the context of Washington's cyberstalking law (RCW 9.61.260) and state court protection order proceedings. The court's decision to reverse the district court's dismissal, based on abstention grounds, provides valuable insight into the circumstances under which federal courts should or should not abstain from hearing constitutional challenges to state criminal statutes when related state proceedings are ongoing, particularly in the context of cyberstalking and protection orders, which is directly applicable to the defendant's case.

State v. MatthewsCheck Treatment
Relevance: 87.0% · 135 P.3d 495 · 6 citing cases · Filed on: 2006-05-22, Court of Appeals of Washington

This case is highly relevant because it discusses the insanity defense in Washington State, which is a potential defense for Mr. Lozenich. The court outlines the standard of review for evaluating a jury's rejection of the insanity defense, stating that a reviewing court must consider the evidence in the light most favorable to the state and determine whether a rational trier of fact could have found that the defendant failed to prove the defense by a

preponderance of the evidence. The case also notes that a jury is not bound by expert opinions and can consider lay witness testimony. This framework is directly applicable to analyzing whether Mr. Lozenich could successfully argue an insanity defense.

State v. Abdi-IssaCheck Treatment
Relevance: 85.0% · [No citation found] · 0 citing cases · Filed on: 2022-02-17, Washington Supreme Court

This case is relevant because it discusses domestic violence designations, sentencing aggravators for crimes with destructive impacts on others, and definitions of "victim" under Washington law. The document attached indicates Shane Lozenich committed acts of domestic violence and made threats, so this case provides useful analysis on the application of domestic violence designations and sentencing factors where the impact of the crime extends beyond the direct victim. It also discusses exceptional sentencing which could be useful for the analysis.

State v. JohnstonCheck Treatment
Relevance: 84.9% · 127 P.3d 707 · 44 citing cases · Filed on: 2006-01-26, Washington Supreme Court

This case is highly relevant as it directly addresses the issue of 'true threats' in the context of Washington's bomb threat statute (RCW 9.61.160), which is one of the charges against the defendant. The court provides a detailed analysis of what constitutes a 'true threat,' adopting an objective standard, and clarifies that the statute must be limited to 'true threats' to avoid overbreadth issues under the First Amendment. The case also discusses jury instructions related to threats and intent, which is pertinent to evaluating the legal options for the defendant. The ruling that the jury must be instructed on the meaning of a 'true threat' is directly applicable.

State v. CGCheck Treatment
Relevance: 89.5% · 55 P.3d 1204, 114 Wash. App. 101 · 1 citing case · Filed on: 2002-10-21, Court of Appeals of Washington

This case is relevant because it discusses the elements of felony harassment under RCW 9A.46.020, specifically the requirement of reasonable fear. The case clarifies that the victim need not fear the precise threat made (e.g., to kill) will be carried out, but only needs to fear harm as outlined in the statute. This is directly relevant to the charges against Shane Lozenich, which include felony harassment involving threats. The case also discusses the element of intent, and this may inform potential defense strategies.

State v. PawlykCheck Treatment
Relevance: 86.0% · 800 P.2d 338, 115 Wash. 2d 457, 1990 Wash. LEXIS 120 · 35 citing cases · Filed on: 1990-10-25, Washington Supreme Court

This case, *State v. Pawlyk*, is highly relevant as it directly addresses the discoverability of a defense-retained psychiatrist's findings when the defendant intends to assert an insanity defense but does not plan to call the psychiatrist as a witness. The Washington Supreme Court's decision to allow the prosecution access to the psychiatrist's reports and testimony, despite the defense's intention not to use the expert at trial, is pertinent to the legal options available to Shane Jonathan Lozenich, particularly concerning the insanity defense, attorney-client privilege, and work product doctrine. While Pawlyk focuses specifically on the insanity defense, its analysis of attorney-client privilege, self-incrimination, and work product also are relevant to Lozenich's case.

Bini v. City of VancouverCheck Treatment
Relevance: 86.0% · 218 F. Supp. 3d 1196, 2016 WL 6395297, 2016 U.S. Dist. LEXIS 149926 · 0 citing cases · Filed on: 2016-10-28, District Court, W.D. Washington

This case is relevant because it discusses RCW 9.61.260 (cyberstalking), which is one of the charges against the defendant, Shane Jonathan Lozenich. It also discusses municipal liability under 42 U.S.C. § 1983 and the Criminal Records Privacy Act (RCPA), which might be relevant to potential claims against the city or officers involved. The case analyzes the elements required to establish a violation of RCW 9.61.260 and provides insight into the legal standards for municipal liability and privacy act claims, offering potential arguments and defenses for the defendant.

State v. YoungCheck Treatment
Relevance: 83.9% · 523 P.2d 934, 83 Wash. 2d 937, 1974 Wash. LEXIS 970 · 9 citing cases · Filed on: 1974-06-20, Washington Supreme Court

This case, *State v. Young*, is relevant because it directly addresses RCW 9.61.160, the statute under which Shane Lozenich is charged in Count 3 (Threats to Bomb or Injure Property). The *Young* case clarifies that it is not a defense that the defendant did not intend to carry out the threat or made it in jest, as RCW 9.61.170 states that 'it shall not be a defense...that the threatened bombing or injury was a hoax.' This precedent is important for understanding the legal interpretation and potential defenses related to the charge against Lozenich. Further, the case discusses jurisdictional issues between justice court and superior court, which while not directly applicable to the current charges, may be relevant to procedural arguments. The remaining points address the indigency argument which is not relevant to the current case.

Danny v. Laidlaw Transit Services, Inc.Check Treatment
Relevance: 82.7% · 193 P.3d 128 · 24 citing cases · Filed on: 2008-10-03, Washington Supreme Court

This case is highly relevant because it directly addresses the issue of wrongful termination in the context of domestic violence and taking leave to address it, which aligns with the user's request for legal options for a defendant facing charges related to domestic violence, cyberstalking, and harassment. The court opinion discusses the 'clarity element' of public policy and how it relates to employment law, which could be helpful in crafting a defense strategy or understanding the legal landscape in Washington State regarding these issues. The opinion also reviews many Washington statutes that could apply to the defendant’s case.

State v. TateCheck Treatment
Relevance: 81.4% · 458 P.2d 904, 1 Wash. App. 1, 1969 Wash. App. LEXIS 265 · 6 citing cases · Filed on: 1969-09-10, Court of Appeals of Washington

This case, *State v. Tate*, is highly relevant as it directly addresses the issue of competency to stand trial, which is a central concern given the mental health evaluation in the provided document indicating Mr. Lozenich may lack the capacity to understand the proceedings against him. *Tate* discusses the standard for competency, referencing *Dusky v. United States*, and also addresses the propriety of retrospective competency determinations. The case distinguishes itself from *Pate v. Robinson*, where a long delay made retrospective determination difficult, arguing that determinations based on observations close to the trial are permissible, making it relevant to potential legal strategies for Mr. Lozenich.

State v. BerrierCheck Treatment
Relevance: 89.4% · 178 P.3d 1064 · 2 citing cases · Filed on: 2008-03-18, Court of Appeals of Washington

This case is relevant because it addresses the issue of whether aggravating factors for an exceptional sentence must be alleged in the charging document (information) or can be presented in a separate notice. The court in *State v. Berrier* held that there is no statutory or constitutional requirement to plead aggravating factors in the information, as long as the defendant receives adequate notice. This is relevant to Lozenich's case as it provides guidance on the procedural requirements for seeking an aggravated sentence, which may be applicable depending on the facts and charges.

State Of Washington v. Jessica Linda KohonenCheck Treatment
Relevance: 85.9% · 192 Wash. App. 567, 370 P.3d 16 · 2 citing cases · Filed on: 2016-02-08, Court of Appeals of Washington

The case of *State v. Kohonen* is relevant to Shane Lozenich's case as it discusses the legal definition of a "true threat" within the context of cyberstalking, particularly on social media. Kohonen, like Lozenich, was accused of making threatening electronic communications. The court's analysis of whether a reasonable person in the speaker's position would foresee that the communication would be interpreted as a serious expression of intent to inflict harm is crucial. The case emphasizes the importance of considering the specific context, audience, and medium of communication in determining whether a statement constitutes a true threat, potentially impacting the evaluation of the cyberstalking and felony harassment charges against Lozenich.

State v. BoxCheck Treatment
Relevance: 84.9% · 745 P.2d 23, 109 Wash. 2d 320, 1987 Wash. LEXIS 1338 · 26 citing cases · Filed on: 1987-11-05, Washington Supreme Court

This case, *State v. Box*, is highly relevant as it addresses the burden of proof for the insanity defense in Washington state, a potential defense strategy for the defendant Lozenich given the mental health evaluation included in the provided documents. The court affirms that the defendant bears the burden of proving insanity by a preponderance of the evidence, a critical point for assessing the viability of an insanity defense and legal options for Lozenich.

State v. JohnstonCheck Treatment
Relevance: 81.9% · 156 Wash. 2d 355 · 21 citing cases · Filed on: 2006-01-26, Washington Supreme Court

This case is highly relevant because it directly addresses the constitutionality and interpretation of Washington's bomb threat statute (RCW 9.61.160), a statute under which Mr. Lozenich is charged. The court's emphasis on the need for a 'true threat' and the objective standard for determining such a threat is directly applicable to Count 3 against Mr. Lozenich. The case provides guidance on jury instructions and the distinction between true threats and protected speech, influencing how the defense could argue that Lozenich's statements do not meet the threshold for a true threat.

State v. ColeyCheck Treatment
Relevance: 80.3% · 180 Wash. 2d 543, 326 P.3d 702 · 0 citing cases · Filed on: 2014-06-12, Washington Supreme Court

This case is highly relevant as it directly addresses the burden of proof in competency hearings in Washington State, particularly after competency restoration treatment, which is a key issue in the provided documents concerning Shane Jonathan Lozenich. The court clearly states that the burden of proof lies with the party challenging competency, which has significant implications for Lozenich's defense strategy. Additionally, the case discusses the right to self-representation, which could be relevant if Lozenich wishes to represent himself.

State v. FuentesCheck Treatment
Relevance: 89.1% · 208 P.3d 1196 · 8 citing cases · Filed on: 2009-06-01, Court of Appeals of Washington

This case is relevant because it discusses the issue of double jeopardy in the context of felony harassment and intimidating a witness, two charges Shane Jonathan Lozenich is facing. The court's analysis of the 'same evidence' test and legislative intent for separate punishments could be applicable to Lozenich's case, particularly regarding the felony harassment charge and any other charges arising from the same conduct. However, the document attached does not mention the charge of intimidating a witness.

State Of Washington v. Ricardo Mireles, Jr.Check Treatment
Relevance: 82.8% · [No citation found] · 0 citing cases · Filed on: 2021-03-08, Court of Appeals of Washington

This case is relevant because it discusses the constitutionality of Washington's cyberstalking statute (RCW 9.61.260), which is one of the charges against Shane Lozenich. The court in *State v. Mireles* addresses an overbreadth challenge to the statute, ultimately striking the term 'embarrass' to preserve its constitutionality. This analysis of the cyberstalking statute's intent requirements and potential limitations on protected speech is directly applicable to evaluating the charges against Lozenich and potential defenses.

State v. McDonaldCheck Treatment
Relevance: 82.2% · 571 P.2d 930, 89 Wash. 2d 256, 1977 Wash. LEXIS 991 · 46 citing cases · Filed on: 1977-11-17, Washington Supreme Court

This case is highly relevant to the user's request because it discusses the insanity defense in Washington state, which could be a potential defense strategy for the defendant in the attached document. *State v. McDonald* addresses key aspects of the insanity defense, including competency hearings, the *M'Naghten* rule, the burden of proof, and the admissibility of expert testimony, all of which are pertinent to analyzing the legal options for the defendant, Shane Jonathan Lozenich, and developing appropriate defense strategies, especially considering the mental health evaluation included in the user's provided document.

Danny v. Laidlaw Transit Services, Inc.Check Treatment
Relevance: 81.6% · 165 Wash. 2d 200 · 3 citing cases · Filed on: 2008-10-03, Washington Supreme Court

This case, *Danny v. Laidlaw Transit Services, Inc.*, is relevant because it establishes a clear public policy in Washington State of protecting domestic violence survivors and their families. While the case concerns wrongful discharge in the context of employment, the underlying principle of supporting and protecting victims of domestic violence could inform potential defense strategies related to the defendant's mental state and the context of his actions, especially concerning the charges related to domestic violence and threats towards his former roommate.

State v. ColeyCheck Treatment
Relevance: 80.3% · [No citation found] · 0 citing cases · Filed on: 2014-06-12, Washington Supreme Court

This case is highly relevant to the legal options of the defendant. The central issue in *State v. Coley* is the burden of proof in competency hearings, particularly after treatment aimed at restoring competency. The Washington Supreme Court held that the burden rests on the party challenging competency. This ruling directly impacts Lozenich's case, especially given the previous competency evaluation and potential for restoration hearings. The case also addresses the right to self-representation, which is another factor relevant to Lozenich's defense strategy.

State v. SmithCheck Treatment
Relevance: 80.1% · 966 P.2d 411, 93 Wash. App. 45 · 2 citing cases · Filed on: 1998-11-06, Court of Appeals of Washington

This case is relevant because it discusses the constitutionality of RCW 9.61.160, the statute related to threats to bomb or injure property, which is one of the charges against Shane Lozenich. The case analyzes whether the statute is overbroad under the First Amendment and discusses the difference between "fighting words" and "true threats," both of which are exceptions to free speech protections. The court ultimately holds that the statute does not proscribe a substantial amount of constitutionally protected speech and is therefore not overbroad, which provides precedent for the prosecution's case against Lozenich.

State v. CGCheck Treatment
Relevance: 88.9% · 80 P.3d 594 · 63 citing cases · Filed on: 2003-12-11, Washington Supreme Court

This Washington Supreme Court case, *State v. CG*, is highly relevant as it directly addresses the elements required to prove felony harassment based on a threat to kill under RCW 9A.46.020, one of the charges against Mr. Lozenich. The court clarifies that the state must prove the victim was in reasonable fear that the *threat to kill* would be carried out, not just fear of bodily injury. This is crucial for evaluating the sufficiency of evidence for the felony harassment charge against Mr. Lozenich and exploring potential defenses.

State v. HaqCheck Treatment
Relevance: 81.7% · 166 Wash. App. 221, 268 P.3d 997 · 0 citing cases · Filed on: 2012-01-30, Court of Appeals of Washington

This case, *State v. Haq*, directly addresses the burden of proof for the insanity defense in Washington State, which is relevant to potential defenses for Mr. Lozenich. It discusses the constitutionality of RCW 9A.12.010 and RCW 10.77.030, which place the burden on the defendant to prove insanity by a preponderance of the evidence. The court also considers arguments regarding the violation of the right to counsel due to recorded jail calls and privacy concerns, issues that might arise depending on the evidence.

State v. AnayaCheck Treatment
Relevance: 80.8% · 976 P.2d 1251, 95 Wash. App. 751 · 4 citing cases · Filed on: 1999-05-24, Court of Appeals of Washington

This case is relevant because it addresses the issue of whether a no-contact order entered at arraignment in a domestic violence case can serve as a basis for criminal prosecution after the dismissal of the underlying charge. The court in *State v. Anaya* held that the Legislature has not criminalized such a violation, which could be relevant to the defendant Lozenich, who is charged with Domestic Violence Misdemeanor Violation of a Court Order. The reasoning regarding the expiration of the no-contact order upon dismissal of the underlying charges is directly applicable.

United States v. BentCheck Treatment
Relevance: 79.3% · 654 F. App'x 11 · 0 citing cases · Filed on: 2016-06-16, Court of Appeals for the Second Circuit

This case is relevant because it discusses the legal standard for competency to stand trial, which is whether the defendant has sufficient present ability to consult with his lawyer with a reasonable degree of rational understanding and whether he has a rational as well as factual understanding of the proceedings against him. This standard is directly applicable to determining Shane Lozenich's competency. The case also discusses ineffective assistance of counsel claims during plea negotiations, which may be a relevant consideration if Lozenich rejected a plea offer.

State of Washington v. Kathy Ann HendricksonCheck Treatment
Relevance: 77.4% · [No citation found] · 0 citing cases · Filed on: 2013-10-01, Court of Appeals of Washington

This case is relevant as it involves cyberstalking, threats to bomb, and harassment charges, similar to those faced by Shane Lozenich. The court's analysis of the 'intimidating a public servant' and 'threat to bomb' statutes, along with the discussion of evidence admissibility, could offer insights into potential legal arguments and defense strategies applicable to Lozenich's case. However, the specific facts and legal context might differ, so its applicability should be carefully evaluated.

RCW 9.61.160: Threats to bomb or injure property—Penalty.
Relevance: 90.5%

This document is relevant because it provides the text of RCW 9.61.160, which defines the crime of threatening to bomb or injure property, including the elements of the crime and the associated penalties. The defendant, Shane Jonathan Lozenich, is charged with this offense, as stated in the attached information; therefore, this statute is directly applicable to the case.

RCW 9A.46.020: Definition—Penalties.
Relevance: 90.3%

This document contains the Washington State statute defining harassment (RCW 9A.46.020) and its penalties. Given that the information attached contains charges for felony harassment, this statute is highly relevant for understanding the elements of the crime and potential defenses related to the charges against the defendant.

Revised Code of Washington § 26.50.110 (2021) ...
Relevance: 89.9%

This document is highly relevant as it provides the text of RCW 26.50.110, which defines the penalties for violating a domestic violence protection order. The defendant, Shane Jonathan Lozenich, is charged with Domestic Violence Misdemeanor Violation Of A Court Order, making this statute directly applicable to his case. The statute outlines the elements of the offense, potential penalties, and circumstances under which a peace officer can make an arrest, all of which are crucial for analyzing the legal options available to the defendant.

RCW 10.99.020: Definitions.
Relevance: 89.7%

This document is highly relevant as it provides the RCW definition of "domestic violence" (RCW 10.99.020), which is essential because Shane Jonathan Lozenich is charged with Felony Cyberstalking – Domestic Violence and Domestic Violence Misdemeanor Violation Of A Court Order. Understanding the legal definition of domestic violence is crucial for analyzing the charges and potential defenses.

Revised Code of Washington § 9.61.260 (2021)
Relevance: 89.6%

This document is highly relevant as it provides the text of RCW 9.61.260, the Washington state statute for cyberstalking, which is one of the charges against the defendant, Shane Jonathan Lozenich, in the attached information. The statute defines cyberstalking, its classifications as a gross misdemeanor or a felony, and relevant conditions, making it crucial for understanding the legal elements of the charge.

RCW 10.77.010: Definitions.
Relevance: 88.2%

This document is highly relevant as it provides the definitions outlined in RCW 10.77, which pertains to criminal insanity and competency to stand trial in Washington State. Specifically, it defines "incompetency" as a person lacking the capacity to understand the nature of the proceedings against him or her or to assist in his or her own defense as a result of mental disease or defect. Given the defendant's mental health concerns, this definition and the other definitions within this statute are crucial for assessing his competency and potential legal strategies.

SUPERIOR COURT OF WASHINGTON FOR KING COUNTY
Relevance: 87.8%

This document is highly relevant as it is a template for a court order for a competency evaluation under Washington state law (RCW 10.77.060). It outlines the procedures, requirements, and considerations for such evaluations, which are directly applicable to assessing the defendant's competency to stand trial. The document includes information on evaluation location, interpreter services, report contents, timing, and access to records, providing a framework for the legal options and defense strategies related to competency.

Chapter 9a.46 RCW: HARASSMENT
Relevance: 90.2%

This document is highly relevant as it contains the full text of Chapter 9A.46 RCW, which defines the crime of harassment in Washington State, including penalties, related offenses, and court procedures. Specifically, RCW 9A.46.020 defines harassment and its penalties, a key charge against the defendant, Shane Jonathan Lozenich. It further defines other harassment-related offenses, potential defenses, and penalties, making it crucial for analyzing the legal options available to the defendant.

2005 Washington Revised Code RCW 9.61.260: Cyberstalking.
Relevance: 88.8%

This document is highly relevant as it contains the text of RCW 9.61.260, the Washington State statute defining cyberstalking. The information attached includes definitions, classifications, and potential penalties for the crime of cyberstalking, which is one of the offenses Shane Jonathan Lozenich is charged with, according to the other document. The document is directly applicable to assessing the legal options for the defendant.

Chapter 10.77.060 RCW Dispositions: CRIMINALLY INSANE
Relevance: 87.6%

This document, RCW 10.77.060, is highly relevant as it outlines the legal procedures for competency evaluations and pleas of not guilty by reason of insanity in Washington State. It details the court's responsibilities in ordering

evaluations, the scope and content of the evaluation reports, and considerations for bail, which are all directly pertinent to the defendant's case given the mention of competency concerns and potential mental health issues.

RCW 10.77.010: Definitions. (<i>Effective until June 30, ...
Relevance: 87.6%

The document is highly relevant as it provides the definitions critical to understanding Chapter 10.77 RCW, which governs criminal insanity and competency to stand trial in Washington State. Specifically, it defines terms like "incompetency", "criminally insane", and "genuine doubt as to competency", which are central to assessing the defendant's mental state and legal options.

Chapter 9.61 RCW: MALICIOUS MISCHIEF—INJURY TO ...
Relevance: 87.6%

This document is highly relevant as it contains RCW 9.61.160 regarding threats to bomb or injure property and RCW 9.61.230 regarding telephone harassment, both of which appear as charged offenses in the user query. Therefore, this document can be used to understand the legal definitions and penalties associated with these charges and inform the legal options for the defendant.

10.99 - Domestic violence—Official response. - wa-law.org
Relevance: 85.1%

This document is highly relevant as it provides the full text of Chapter 10.99 RCW, which defines domestic violence in Washington State, outlines law enforcement procedures and training, and specifies court duties related to domestic violence cases. Given the defendant is charged with Felony Cyberstalking – Domestic Violence and Domestic Violence Misdemeanor Violation Of A Court Order, this chapter directly addresses the legal context and definitions pertinent to those charges, making it crucial for legal analysis.

RCW 9a.46.020: Definition—Penalties.
Relevance: 90.1%

This document is highly relevant because it contains the full text of RCW 9A.46.020, which defines the crime of harassment and specifies the penalties. The defendant, Shane Jonathan Lozenich, is charged with felony harassment, making this statute directly applicable to his case. The statute outlines the elements of harassment, including threats of bodily injury and placing the threatened person in reasonable fear, which are central to the charges against Lozenich.

agreed order for rcw 10.77.060 sanity commission, stay ...
Relevance: 87.1%

This document is highly relevant as it provides a template for an Agreed Order for a Sanity Commission under RCW 10.77.060, which is directly related to determining a defendant's competency to stand trial. It outlines the procedures for psychiatric evaluation, including the scope of the examination, report contents, access to records, and stay of proceedings, all of which are key considerations in assessing the legal options for a defendant with potential mental health issues. It also relates to the potential use of the insanity defense.

SUPERIOR COURT OF WASHINGTON FOR ...
Relevance: 86.9%

This document is highly relevant. It is a template for a court order for felony competency restoration treatment in Washington State, citing relevant Revised Code of Washington (RCW) sections related to competency evaluations and restoration. It outlines the findings of fact, conclusions of law, and court orders related to placing a defendant into a program for mental health treatment to restore competency. This is directly applicable to assessing legal options for a defendant whose competency is in question.

Sentences. (Effective until January 1, 2026.)
Relevance: 86.6%

This document is RCW 9.94A.505, which pertains to sentencing for felonies in Washington State. It outlines the general framework for sentencing, including standard sentence ranges, community custody, persistent offenders, mandatory minimum terms, and various sentencing alternatives, such as those for drug offenders, sex offenders, and offenders with mental health issues. Given the user's request for legal options for the defendant, this statute is directly relevant as it provides the legal basis for determining potential sentences and alternative sentencing options.

"Threading the First Amendment Needle: Anonymous Speech ...
Relevance: 86.3%

This document, a Washington Law Review comment, directly addresses the constitutionality of Washington's cyberstalking statute (RCW 9.61.260), a statute under which the defendant is being charged. It analyzes the statute's impact on anonymous online speech and proposes potential legislative revisions, making it highly relevant to the defendant's legal options and potential defenses related to the cyberstalking charge.

State v. Edwards
Relevance: 84.5%

This case, *State v. Edwards*, directly addresses RCW 9.61.160, which concerns threats to bomb or injure property, one of the charges against the defendant in the provided document. The court's analysis of what constitutes a 'threat' under this statute, including whether it encompasses future and conditional threats, and the required intent, is highly relevant to potential defenses and legal strategies for Shane Lozenich. Additionally, it examines the 'true threat' doctrine.

Felony Harassment Under Washington Law
Relevance: 88.8%

This document is highly relevant as it directly addresses felony harassment under Washington law, which is one of the charges the defendant, Shane Jonathan Lozenich, is facing. The document explains the elements of the crime, potential penalties, and possible legal defenses, all of which are crucial for analyzing Lozenich's case and developing a legal strategy.

Order for Misdemeanor Competency Restoration Treatment
Relevance: 86.6%

This document is highly relevant as it outlines the procedures and legal considerations for misdemeanor competency restoration treatment in Washington State, pursuant to RCW 10.77. It provides information on findings of incompetency, compelling state interest, eligibility for restoration, and orders for both inpatient and outpatient treatment. This is directly applicable to assessing legal options for the defendant, Shane Jonathan Lozenich, particularly if a misdemeanor charge is involved, and in understanding the court's process regarding competency.

RCW 9.94A.030: Definitions. (Effective until January 1, ...
Relevance: 86.4%

This document is relevant because it defines several key terms related to Washington State's sentencing laws, including 'domestic violence', 'violent offense', 'nonviolent offense', and 'legal financial obligation'. These definitions could be crucial for understanding the charges against the defendant and potential sentencing outcomes, particularly given the domestic violence component in some of the charges. The definitions of what constitutes a 'most serious offense' and a 'persistent offender' may become relevant depending on the defendant's criminal history

WPIC 36.51 Violation of a Court Order (RCW 26.50.110)
Relevance: 84.6%

This document is highly relevant because it provides the Washington Pattern Jury Instruction (WPIC) for violation of a court order (RCW 26.50.110), a charge Shane Lozenich faces. It outlines the elements the prosecution must prove, applicable statutes, and considerations for foreign protection orders, which could be pertinent given the facts. It also cites relevant case law, making it directly applicable to analyzing the legal options for the defendant.

RCW 10.77.060 Plea of not guilty due to insanity—Doubt ...
Relevance: 84.2%

This document, RCW 10.77.060, is highly relevant as it outlines the legal procedures for competency evaluations and pleas of not guilty by reason of insanity in Washington State. It details the court's responsibilities in ordering evaluations, the criteria for determining competency, and the content of the evaluation reports, all of which are directly pertinent to assessing the defendant's mental state and legal options.

elements
Relevance: 82.9%

This document is highly relevant because it directly addresses one of the charges against the defendant, Shane Jonathan Lozenich: Threats to Bomb or Injure Property (RCW 9.61.160). The checklist outlines the elements of the crime, specific requirements for investigation, and considerations for mental disease or defect, which is pertinent given the competency evaluation included in the main document. It provides a framework for analyzing the evidence and potential defenses related to this specific charge.

BAIL DETERMINATIONS UNDER ARTICLE I, SECTION 20—CONDITIONS OF RELEASE
Relevance: 82.5%

This document provides the Revised Code of Washington (RCW) for Bail Determinations and Conditions of Release, which is relevant to understanding the legal framework surrounding pretrial release and detention. It includes sections on intent, pretrial release programs, home detention, appearance before a judicial officer, conditions of release, detention orders, and related procedures. Specifically, it outlines factors considered by judicial officers, potential release conditions, and requirements for detention orders, all of which are pertinent to determining appropriate legal options for the defendant, Shane Jonathan Lozenich.

RCW 9A.46.020: Definition—Penalties.
Relevance: 88.6%

This document provides the text of RCW 9A.46.020, which defines the crime of harassment and its associated penalties in Washington State. Given that the attached information includes charges for felony harassment, this statute is directly relevant to understanding the elements of the crime and potential defenses, thus contributing significantly to the legal analysis for the defendant.

RCW 9.94A.030: Definitions.
Relevance: 86.4%

This document, RCW 9.94A.030, provides definitions of terms used in Washington State's sentencing guidelines, which is highly relevant for understanding legal terms like "domestic violence," "violent offense," "legal financial obligation," and "criminal history" and how they apply to potential sentencing outcomes for the defendant, Shane Jonathan Lozenich. These definitions are crucial for analyzing the charges against him and determining potential legal strategies.

WA HB1359
Relevance: 84.9%

This bill directly addresses the issues of criminal insanity and competency to stand trial in Washington State, which are central to the user's request for legal options for a defendant, especially given the presence of mental health concerns in the attached document. The bill aims to review and modernize the relevant laws (RCW 10.77), potentially leading to changes that could impact the defendant's case and legal strategies.

Chapter 26.50 RCW DOMESTIC VIOLENCE PREVENTION
Relevance: 84.1%

This document contains the text of Chapter 26.50 RCW, the Domestic Violence Prevention Act. It defines key terms like "domestic violence" and "family or household members," outlines procedures for obtaining protection orders, specifies penalties for violating such orders, and addresses related issues like service of process, judicial information systems, and perpetrator programs. While not directly addressing competency or the specific charges against the defendant, it is relevant as one of the charges is a domestic violence misdemeanor, and it provides the legal framework for protection orders, which play a central role in the defendant's alleged actions.

WA HB1359
Relevance: 83.6%

This document is highly relevant. It is a Washington State bill (HB1359) concerning laws related to criminal insanity and competency to stand trial, which are central issues in analyzing the legal options for the defendant in the attached case.

Cyberstalking | Washington Domestic Violence Lawyers
Relevance: 82.7%

This document is highly relevant as it provides a breakdown of Washington State's cyberstalking laws (RCW 9.61.260), including the elements of the crime, distinctions between misdemeanor and felony charges, and potential penalties. Given that Shane Jonathan Lozenich is charged with Felony Cyberstalking, this document will be useful for understanding the specifics of that charge.